

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sruthi Venigalla	Team: Team # 3	CCRB Case #: 201400771	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/24/2014 11:45 PM	Location of Incident: Pitkin Avenue and Euclid Avenue	18 Mo. SOL 7/24/2015	Precinct: 75		
Date/Time CV Reported Sun, 01/26/2014 1:32 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 01/26/2014 1:32 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Miguel Marte	04050	927135	GANG BN
2. POM Edgar Gonzalez	00810	936680	GANG BN
3. DT3 Amjad Kasaji	06901	939768	GANG BN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Gloria Pagan	20479	947519	GANG BN

Officer(s)	Allegation	Investigator Recommendation
A . POM Edgar Gonzalez	Abuse: PO Edgar Gonzalez facilitated the stop of § 87(2)(b)	A . Unsubstantiated
B . POM Edgar Gonzalez	Abuse: PO Edgar Gonzalez frisked § 87(2)(b)	B . Unsubstantiated
C . POM Edgar Gonzalez	Abuse: PO Edgar Gonzalez searched § 87(2)(b)	C . Unsubstantiated
D . SGT Miguel Marte	Abuse: Sgt. Miguel Marte supervised the stop of § 87(2)(b)	D . Substantiated
E . POM Edgar Gonzalez	Abuse: PO Edgar Gonzalez frisked § 87(2)(b)	E . Substantiated
F . POM Edgar Gonzalez	Abuse: PO Edgar Gonzalez searched § 87(2)(b)	F . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On January 26, 2014, § 87(2)(b) filed a complaint online on behalf of himself and § 87(2)(b) using the Civilian Complaint Review Board's website (Encl. 3A – 3D).

On January 24, 2014 at approximately 11:45 p.m., at the northeast corner of Pitkin Avenue and Euclid Avenue in Brooklyn, § 87(2)(b) was arrested by PO Gloria Pagan of Gang Squad Brooklyn North. The following allegations resulted:

- **Allegation A – Abuse of Authority: PO Edgar Gonzalez facilitated the stop of**

§ 87(2)(b)

- **Allegation B – Abuse of Authority: PO Edgar Gonzalez frisked** § 87(2)(b)

- **Allegation C – Abuse of Authority: PO Edgar Gonzalez searched** § 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A, B and C be closed as unsubstantiated.**

- **Allegation D – Abuse of Authority: Sgt. Miguel Marte supervised the stop of**

§ 87(2)(b)

- **Allegation E – Abuse of Authority: PO Edgar Gonzalez frisked** § 87(2)(b)

- **Allegation F – Abuse of Authority: PO Edgar Gonzalez searched** § 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that **Allegations D, E and F be substantiated**

- § 87(4-b), § 87(2)(g)

This case is ineligible for mediation because of § 87(2)(b) arrest.

Results of Investigation

Civilian Statement(s)

Complainant/Witness: § 87(2)(b)

- § 87(2)(b) is a black man who § 87(2)(b) has brown hair and brown eyes. At the time of the incident, § 87(2)(b) was § 87(2)(b)

On March 10, 2014, § 87(2)(b) provided a sworn statement at the CCRB which is summarized below (Encl. 3G – 3K).

On January 24, 2014 at approximately 11:45 p.m. on the northeast corner of Euclid Avenue and Pitkin Avenue in Brooklyn, § 87(2)(b) and his friend, identified by the investigation as § 87(2)(b) were standing at the entrance of the Euclid Avenue subway station while smoking a cigarette. § 87(2)(b) was wearing a black jacket and jeans, and carrying his cellphone and wallet in his pocket. He could not recall what § 87(2)(b) was wearing. They did not make physical contact with each other, or interact with any other individuals. At the time of the incident, § 87(2)(b) was not under the influence of drugs or alcohol.

Approximately forty-five seconds later, a black Chevrolet Impala pulled up next to them and four officers in plainclothes, identified by the investigation as Sgt. Miguel Marte, PO Edgar Gonzalez, PO Gloria Pagan and Det. Amjad Kasaji of Gang Squad Brooklyn North, stepped out of the vehicle. An officer, described by § 87(2)(b) as a heavyset Hispanic woman with long curly black hair, and identified by the investigation as PO Pagan, said, “What’s going on? What are you doing there?” and placed her hand on § 87(2)(b) left shoulder. § 87(2)(b) who thought he was being mugged, pulled away and said, “If you are police, can I see your identification? Are you bonded and insured? Who’s your bonding agency and your insurance provided?” PO Pagan appeared to ignore him, so § 87(2)(b) asked again, “Can I see your information?” to which she replied, “What information? We are police just looking for guns. We don’t care about the drugs. Do you know where the guns are?” § 87(2)(b) replied “Your bond and your company. Your underwriters and your insurers.” He added that they were smoking a cigarette and were about to get on the train. All four of the officers had surrounded § 87(2)(b) and § 87(2)(b) preventing them from walking away.

PO Pagan then said, “Put your hands behind your back,” to which § 87(2)(b) replied, “What’s going on here? Am I being detained or arrested?” He was then handcuffed, frisked and searched by PO Pagan. § 87(2)(b) stated that no contraband was recovered. He also observed § 87(2)(b) being frisked and searched by two other officers, identified by the investigation as Sgt. Marte and Det. Kasaji, however, he was not placed under arrest. § 87(2)(b) could not recall additional details regarding § 87(2)(b)’s frisk and search because he was focusing on his own interaction with the officers. Both § 87(2)(b) and § 87(2)(b) remained compliant during their interaction with the officers.

PO Pagan informed § 87(2)(b) that he had an active warrant before placing him in the unmarked police car. § 87(2)(b) stated that he was transported to the 81st Precinct stationhouse, however, the investigation determined that he was transported to the 75th Precinct stationhouse. During the transport, an officer, identified by the investigation as Det. Amjad Kasaji said to § 87(2)(b) “Do you know about the gangs out there? Any weapons?” At the stationhouse, § 87(2)(b) was issued a desk appearance ticket by PO Pagan and then released approximately five hours later.

Victim: § 87(2)(b)

- § 87(2)(b) is a black man who § 87(2)(b) has brown hair and brown eyes. At the time of the incident, § 87(2)(b) was § 87(2)(b)

§ 87(2)(b) is currently incarcerated at § 87(2)(b)
§ 87(2)(b) On November 5, 2014, he provided a statement over the telephone, which is summarized below.

On January 24, 2014, at approximately 11:35 p.m., § 87(2)(b) and § 87(2)(b) were walking on Belmont Avenue towards Euclid Avenue in Brooklyn, where they turned right onto Pitkin Avenue. § 87(2)(b) and § 87(2)(b) who were wearing boots, pants and

winter jackets with hooded sweatshirts underneath, had pulled their sweatshirts over their faces so that only their eyes and nose were visible. They were smoking while walking, and although § 87(2)(b) could not recall if it was tobacco or marijuana that they were smoking, § 87(2)(b) believes that they may have been smoking marijuana.

§ 87(2)(b) and § 87(2)(b) had been walking for approximately fifteen minutes before they stopped in front of the Euclid Avenue subway station stop. § 87(2)(b) described the location as well-lit with heavy foot and vehicle traffic.

A few seconds later, an unmarked vehicle, identified by the investigation as a black Chevrolet Impala, pulled up in front of them. Four officers in plainclothes, identified by the investigation as Sgt. Miguel Marte, Det. Amjad Kasaje, PO Edgar Gonzalez and PO Gloria Pagan of the 75th Precinct, exited the vehicle and said, “Freeze. Put your hands up! Don’t move.” At that moment, § 87(2)(b) and § 87(2)(b) threw their cigarettes to the ground and placed their hands up. All four officers approached them and stood in a way that one officer stood behind them, and the remaining three stood in front of them. An officer, who § 87(2)(b) described as a Hispanic man who was also a passenger in the unmarked RMP, frisked § 87(2)(b) at his shoulders, down his arms, along his torso and down his legs. The officer then unzipped § 87(2)(b)'s coat and frisked his hooded sweatshirt underneath. PO Gonzalez also frisked § 87(2)(b) before placing him in handcuffs and then searching him, where a clear Ziploc bag of marijuana was recovered.

PO Gonzalez asked § 87(2)(b) if he knew § 87(2)(b) what he was doing with § 87(2)(b) and if he knew § 87(2)(b) was carrying marijuana. § 87(2)(b) stated that they were coming from a friend’s house, that he was on his way home, and that he did not know that § 87(2)(b) was carrying marijuana. PO Gonzalez handed over § 87(2)(b) personal belongings and informed him that § 87(2)(b) was going to be taken to the 75th Precinct. § 87(2)(b) then walked into the Euclid Avenue subway station.

NYPD Statement(s):

Subject Officer: PO EDGAR GONZALEZ

- PO Gonzalez is a Hispanic man whose pedigree information is unknown. At the time of the incident, he was § 87(2)(b).
- PO Gonzalez was working from 5:27 p.m. on January 24, 2014 to 2:00 a.m. on January 25, 2014 in plainclothes. He was assigned to Gang Enforcement Unit with PO Michael Noboa at the beginning of the day, and later with Sgt. Miguel Marte, Det. Amjad Kasaji and PO Gloria Pagan in an unmarked RMP, he did not have the number of.

Memo Book Entries

PO Gonzalez did not have any memo book entries regarding the incident.

CCRB Testimony

PO Gonzalez provided a statement to the CCRB on June 13, 2014, and it is summarized below (Encl. 5D – 5E).

On January 24, 2014 at approximately 11:24 p.m., PO Gonzalez observed § 87(2)(b) and another individual, identified by the investigation as § 87(2)(b) standing at the entrance of the Euclid Avenue subway station on the northeast corner of Euclid Avenue and Pitkin Avenue in Brooklyn. PO Gonzalez did not specify how for long he observed § 87(2)(b).

PO Gonzalez was seated in the back left passenger seat of an unmarked RMP that Sgt. Marte was driving, when he observed § 87(2)(b) to be holding a bag of what he believed to be marijuana, from approximately one car length away. § 87(2)(b) appeared to be talking to § 87(2)(b).

§ 87(2)(b) and they did not make any physical contact. The corner is well-lit, and because of the subway station, there is often heavy foot and vehicle traffic. He said to Sgt. Marte, “Stop the car. He has drugs on him.” When Sgt. Marte stopped the vehicle, PO Gonzalez got out, approached § 87(2)(b) and verbally identified himself as an officer. He could not recall § 87(2)(b) asking him or any other officer for names and shield numbers.

PO Gonzalez did not smell any marijuana as he approached § 87(2)(b) but was able to recognize the substance as marijuana from his previous drug-related arrests, in a “Ziploc” bag which he could not further describe. § 87(2)(b) who was wearing jeans, then attempted to hide the bag on his body. Although PO Gonzalez could not recall where on his body that § 87(2)(b) attempted to hide the marijuana, PO Gonzalez frisked § 87(2)(b) on the same area and felt a bulge that he could not further describe. He did not have any interaction with § 87(2)(b) and although the remaining officers also exited the vehicle, he did not observe any interaction between them and § 87(2)(b) because he was focused on handcuffing § 87(2)(b). After handcuffing § 87(2)(b) PO Gonzalez searched him and recovered the bag of marijuana, an amount of which he could not recall. No other contraband was recovered. He did not discuss frisking § 87(2)(b) with Sgt. Marte, or any other officer. § 87(2)(b) who was not arrested, “was let go.”

PO Gonzalez described the incident location as a crime prone location with incidents of drug sales and shootings but he was not investigating any patterns on that day. He did not have any reason to believe that § 87(2)(b) was carrying a weapon and he could not recall asking him about weapons. § 87(2)(b) who remained compliant throughout the incident, was placed in the unmarked vehicle and transported to the 75th Precinct stationhouse where PO Pagan processed his arrest.

Subject Officer: SGT. MIGUEL MARTE

- Sgt. Marte is a Hispanic man who § 87(2)(b) has black hair and brown eyes. At the time of the incident, he was 39 years old.
- On January 24, 2014, Sgt. Marte was working from 5:25 p.m. to 2:10 a.m. on January 25, 2014 in plainclothes, and assigned to Gang Enforcement Unit with Det. Amjad Kasaji, PO Edgar Gonzalez and PO Gloria Pagan in an unmarked RMP § 87(2)(f), § 87(2)(g).

Memo Book Entries

Sgt. Marte had the following memo book entries regarding this incident (Encl. 6A -6B).

- 11:45 p.m. – 109-2C arrest at Euclid and Pitkin Avenues. § 87(2)(b) § 87(2)(b) /Pagan.

CCRB Testimony

Sgt. Marte provided a statement at the CCRB on June 13, 2014, and it is summarized below (Encl. 6C -6D).

On January 24, 2014 at approximately 11:45 p.m., Sgt. Marte who was driving the unmarked RMP, was patrolling the confines of the 75th Precinct with Det. Kasaji, PO Gonzalez and PO Pagan when PO Gonzalez, who was seated in the passenger’s seat behind Sgt. Marte, said, “Sarge, this guy has marijuana on him.” Sgt. Marte then noticed an individual approximately one car length away, identified by the investigation as § 87(2)(b) standing near a subway station, identified by the investigation as the Euclid Avenue subway station. However, Sgt. Marte did not observe the marijuana.

§ 87(2)(b) was with another individual, identified by the investigation as § 87(2)(b) and they appeared to be talking without making any physical contact. The location was sufficiently lit with heavy foot and vehicle traffic because of the adjacent subway station, and prone to gang activity and gun violence. They were not investigating any pattern that day.

Although all of them exited the vehicle, PO Gonzalez was the first to approach § 87(2)(b) and interact with him PO Gonzalez approached § 87(2)(b) and said, “Police”. He could not recall § 87(2)(b) asking them for their names and shields, but that their shields were visible. Neither he nor any other officer had any interaction with § 87(2)(b) who left to go into the subway station as soon as the officers approached them.

PO Gonzalez recovered marijuana from § 87(2)(b) who remained compliant, although Sgt. Marte could not recall how it was recovered, or how much was recovered. No other officer interacted with § 87(2)(b) who was subsequently frisked and searched by PO Gonzalez after being placed in handcuffs. § 87(2)(b) was transported to the 75th Precinct stationhouse in the unmarked RMP, during which, neither Sgt. Marte nor any other officer asked § 87(2)(b) about guns.

Subject Officer: DET. AMJAD KASAJI

- *Det. Kasaji is a white man who § 87(2)(b) has black hair and brown eyes. At the time of the incident, he was § 87(2)(b)*
- *On January 24, 2014, Det. Kasaji was working from 5:27 p.m. to 2:00 a.m. on January 25, 2014, in plainclothes, and assigned to Gang Enforcement Unit with Sgt. Miguel Marte, PO Edgar Gonzalez and PO Gloria Pagan in an unmarked RMP, he did not have the number of.*

Memo Book Entries

Det. Kasaji had no memo book entries regarding this incident (Encl. 7A – 7B).

CCRB Testimony

Det. Kasaji provided a statement at the CCRB on June 13, 2014, and it is summarized below (Encl. 7C – 7D).

On January 24, 2014 at approximately 11:24 p.m., Det. Kasaji was seated in the front passenger seat of the unmarked RMP that Sgt. Marte was driving, when PO Gonzalez who was seated in the passenger seat behind Sgt. Marte, stated that he observed an individual, identified by the investigation as § 87(2)(b) with marijuana in plain view. Det. Kasaji could not recall if PO Gonzalez provided any more details regarding how much marijuana was observed, or what form it was in. Det. Kasaji, who could not recall how far away he was from § 87(2)(b) only noticed him upon PO Gonzalez pointing him out. § 87(2)(b) was standing with another individual he could not describe, but who was identified by the investigation as § 87(2)(b)

Det. Kasaji described the incident location, the northeast corner of Pitkin Avenue and Euclid Avenue in Brooklyn, as a well-lit area with heavy foot and vehicle traffic. He also stated that the incident location is prone to crime, but that he was not investigating any specific pattern that day. All four officers exited the vehicle, but PO Gonzalez approached § 87(2)(b) first, and could be heard identifying himself verbally as “police.” Det. Kasaji, who smelled marijuana upon approaching § 87(2)(b) could not recall § 87(2)(b) asking any officer for their name and shield, but stated that shields were visible on all of them. Det. Kasaji only observed PO Gonzalez speaking to § 87(2)(b) and because Det. Kasaji continued to focus only on the safety of the other officers, he could not recall any other interaction between PO Gonzalez and § 87(2)(b). No other officer interacted with § 87(2)(b) or § 87(2)(b). Det. Kasaji knew that marijuana was recovered from § 87(2)(b) but he did not know how much was recovered, what it looked like, or where it was recovered from. Det. Kasaji did not observe any officer frisking and searching § 87(2)(b) but assumed that an officer had done so since § 87(2)(b) was placed under arrest.

§ 87(2)(b) was handcuffed and placed in the unmarked RMP. Det. Kasaji did not know what happened to § 87(2)(b) but knew that § 87(2)(b) had not been arrested. During the

transport to the 75th Precinct stationhouse, Det. Kasaji said that neither he nor any other officer would ask him about guns or drugs, because § 87(2)(b) would already have been searched prior to being placed in the vehicle. At the stationhouse, his arrest was processed by PO Pagan.

Witness Officer: PO GLORIA PAGAN

- PO Pagan is a Hispanic woman who § 87(2)(b) has black hair and brown eyes. At the time of the incident, she was § 87(2)(b).
- On January 24, 2014, PO Pagan was working from 5:27 p.m. to 2:00 a.m. on January 25, 2014. She was assigned to investigations in unmarked RMP § 87(2)(b) with Sgt. Miguel Marte, PO Edgar Gonzalez and Det. Amjad Kasaji.

Memo Book Entries

PO Pagan had the following memo book entries regarding the incident (Encl. 4A – 4C).

- 23:40 – 1 male stopped at the corner of Pitkin Avenue and Euclid Avenue § 87(2)(b) recovered by PO Gonzalez.
- 23:45 – 1092 x 1. § 87(2)(b) (DOB: § 87(2)(b)), § 87(2)(b)
- 00:20 – (84) at BNGS.
- 03:00 - DAT approved. Serial # § 87(2)(b)
- 04:00 – 13 bags of marijuana vouchered under PCI # § 87(2)(b) for Narco. § 87(2)(b) placed in security envelope # § 87(2)(b)
- 09:30 – Prisoner released on DAT § 87(2)(b)

Arrest Report

§ 87(2)(b), § 87(2)(a) 160.50

Desk Appearance Ticket (DAT)

§ 87(2)(a) 160.50

CCRB Testimony

PO Pagan was interviewed at the CCRB on May 14, 2014 and her testimony is summarized below (Encl. 4J -4K).

On January 24, 2014, PO Pagan was assigned to arrest processing, and seated behind the front passenger's seat of an unmarked four-door sedan, driven by Sgt. Marte. Det. Kasaji was in the front passenger's seat, and PO Gonzalez was next to PO Pagan.

PO Gonzalez initially approached § 87(2)(b) at the corner of Euclid Avenue and Pitkin Avenue in Brooklyn. However, he did not discuss his observations or intent with any other officer within the vehicle prior to approaching § 87(2)(b) and neither did Sgt. Marte when he pulled the RMP over at the corner and stepped out with PO Gonzalez. PO Pagan could not recall the lighting conditions, foot and vehicle traffic conditions at this time; however, she described the location as a gang-activity prone location near which two shootings and one stabbing occurred two weeks prior to that day. No perpetrator for these crimes had been identified.

PO Pagan remained seated in the vehicle which was parked approximately five feet away, and when she stepped out approximately three minutes later, § 87(2)(b) was in handcuffs. She could not recall if there was another individual with § 87(2)(b) what § 87(2)(b) was wearing, and did not observe the initial interaction between the officers and § 87(2)(b). She did not observe any officer frisk or search him, and did not know that he was in possession of marijuana till she began processing the arrest paperwork at the 75th Precinct stationhouse. PO Pagan stated that PO Gonzalez recovered the marijuana, but did not know how it was recovered, and she could not recall smelling marijuana during this incident. At some point, § 87(2)(b) asked PO Pagan for her name and shield number, which she provided verbally before stating that the information would also be on his voucher receipt. § 87(2)(b) appeared to have understood this information. PO Pagan could not recall if he asked other officers for their names and shield numbers.

§ 87(2)(b) was placed in the officers' unmarked vehicle. PO Pagan did not know if there was any reason to believe that he was in possession of any weapons, and did not hear any officer ask him if he was also in possession of weapons.

NYPD Document(s)

Movement Sheet

The Gang Squad Brooklyn North movement sheet for Tour 3 on January 24, 2014 indicates that Sgt. Marte, Det. Kasaji, PO Gonzalez and PO Pagan were assigned together (Encl. 8A -8F).

MISD

No warrant checks were conducted through the MISD database for § 87(2)(b) on January 24, 2014 (Encl. 11A).

Electronic Stop, Question and Frisk Report

The electronic Stop, Question and Frisk log for reports prepared by the 75th Precinct on January 24, 2014 did not list any results relating to the incident (Encl. 11C-1).

Handwritten Stop, Question and Frisk Report

No Stop, Question and Frisk report was prepared by the 75th Precinct for § 87(2)(b) or § 87(2)(b) (Encl. 11C).

Property Voucher

On January 24, 2014 at 3:09 p.m., PO Pagan vouchered § 87(2)(b) (Encl. 4H – 4I).

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of June 18, 2014 with regard to the incident (Encl. 9E). The undersigned investigator submitted a Freedom of Information Law request on November 7, 2014 regarding whether a notice of claim was filed and is pending a response.

Civilian(s) Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

- q [REDACTED]
[REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]

Civilian(s) CCRB History

- § 87(2)(b) has filed the following CCRB complaints (Encl. 2F):
 - § 87(2)(b)
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
- § 87(2)(b) has not filed any previous CCRB complaints (Encl. 2G).

Subject Officer(s) CCRB History

- Sgt. Marte has been a member of the service for thirteen years and there are four substantiated CCRB allegations against him (Encl. 2A -2B).
 - In CCRB case number 200506067, allegations of physical force, threat of force and discourteous language were substantiated by the Board, however, he was found not guilty in a departmental trial.
 - In CCRB case number 200603330, an allegation of entry and search of premises was substantiated by the Board, however, he was found not guilty in a departmental trial.
- PO Edgar Gonzalez has been a member of the service for nine years and there are no substantiated CCRB allegations against him (Encl. 2C).
- Det. Amjad Kasaji has been a member of the service for eight years, and although this is not the first complaint against him, there are no substantiated CCRB allegations against him (Encl. 2D).
- PO Gloria Pagan has been a member of the service for six years and there are no substantiated CCRB allegations against her (Encl. 2E).

Conclusion

Identification of Subject Officer(s)

Sgt. Marte, PO Gonzalez, Det. Kasaji and PO Pagan admitted to being present at the scene, at the time of § 87(2)(b) arrest.

Allegations not pleaded

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED].”

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Edgar Gonzalez facilitated the stop of § 87(2)(b)

[REDACTED]

Allegation B – Abuse of Authority: PO Edgar Gonzalez frisked § 87(2)(b)

Allegation C – Abuse of Authority: PO Edgar Gonzalez searched § 87(2)(b)

It is undisputed that PO Gonzalez stopped, frisked and searched § 87(2)(b) at the corner of Pitkin Avenue and Euclid Avenue in Brooklyn. § 87(2)(g)

§ 87(2)(b) stated that he and § 87(2)(b) were standing at the entrance of the Euclid Avenue subway station while smoking a cigarette. Approximately forty-five seconds later, a black Chevrolet Impala pulled up next to them and four officers in plainclothes, identified by the investigation as Sgt. Miguel Marte, PO Edgar Gonzalez, PO Gloria Pagan and Det. Amjad Kasaji of Gang Squad Brooklyn North, stepped out of the vehicle. PO Pagan asked, “What’s going on? What are you doing there?” and placed her hand on § 87(2)(b) left shoulder. § 87(2)(b) replied that they were smoking a cigarette and were about to get on the train. All four of the officers had surrounded § 87(2)(b) and § 87(2)(b) preventing them from walking away. An officer, identified by the investigation as PO Gonzalez, placed § 87(2)(b) in handcuffs, and frisked and searched him. § 87(2)(b) denied that any contraband was recovered.

PO Gonzalez stated that he observed § 87(2)(b) approximately one car length away, to be holding a bag of what he believed to be marijuana while standing in a well-lit corner. Upon his observation, PO Gonzalez said to Sgt. Marte, “Stop the car. He has drugs on him.” PO Gonzalez also stated that § 87(2)(b) who was wearing jeans, attempted to hide the bag on his body. Although PO Gonzalez could not recall where on his body that § 87(2)(b) attempted to hide the marijuana, PO Gonzalez frisked § 87(2)(b) on the same area and felt a bulge that he could not further describe. After handcuffing § 87(2)(b) PO Gonzalez searched him and recovered the bag of marijuana, an amount of which he could not recall.

§ 87(2)(g)

PO Pagan stated that she remained in the RMP and was not aware that § 87(2)(b) was in possession of marijuana. Although they had not observed marijuana, Sgt. Marte and Det. Kasaji approached § 87(2)(b) based on PO Gonzalez’ discussion of his observations. Det. Kasaji also added that he smelled marijuana upon approaching § 87(2)(b) an observation that no other officer, including PO Gonzalez, corroborated. Although Sgt. Marte, Det. Kasaji or PO Pagan recalled that PO Gonzalez recovered marijuana from § 87(2)(b) only Sgt. Marte recalled that § 87(2)(b) was frisked and searched by PO Gonzalez after being placed in handcuffs. Det. Kasaji and PO Pagan did not observe any officer frisking and searching § 87(2)(b)

The individual standing with § 87(2)(b) identified by the investigation as § 87(2)(b) stated that they had been smoking at the corner of Pitkin Avenue and Euclid Avenue before an unmarked vehicle, identified by the investigation as a black Chevrolet Impala, pulled up in front of them. Although § 87(2)(b) could not recall if it was tobacco or marijuana that they were smoking, § 87(2)(b) believes that they may have been smoking marijuana. When Sgt. Marte, Det. Kasaji, PO Gonzalez and PO Pagan, exited the vehicle and said, “Freeze. Put your hands up! Don’t move,” § 87(2)(b) and § 87(2)(b) “flicked” or threw their cigarettes to the ground and placed their hands up. § 87(2)(b) corroborated PO Gonzalez’ statement in that PO Gonzalez frisked § 87(2)(b) before placing him in handcuffs and then searching him. § 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A, B and C be closed as unsubstantiated.**

Allegation D – Abuse of Authority: Sgt. Miguel Marte supervised the stop of § 87(2)(b)

Allegation E – Abuse of Authority: PO Edgar Gonzalez frisked § 87(2)(b)

Allegation F – Abuse of Authority: PO Edgar Gonzalez searched § 87(2)(b)

It is undisputed that Sgt. Marte, PO Gonzalez, Det. Kasaji and PO Pagan approached § 87(2)(b) and § 87(2)(b) at Pitkin Avenue and Euclid Avenue in Brooklyn. § 87(2)(b) stated that he and § 87(2)(b) were standing at the entrance of the Euclid Avenue subway station while smoking a cigarette when a black Chevrolet Impala pulled up. Sgt. Marte, Det. Kasaji, PO Gonzalez and PO Pagan exited the vehicle and surrounded them, preventing from walking away. During the interaction, § 87(2)(b) observed § 87(2)(b) being frisked and searched by two officers.

§ 87(2)(b) corroborated § 87(2)(b) statement regarding his interaction with the officers, as well as, their descriptions. According to § 87(2)(b) the four officers exited the vehicle and said, “Freeze. Don’t move. Put your hands up!” All four officers exited the vehicle and surrounded them such that one officer stood in the back of them, and the remaining three stood in front of them. An officer, who § 87(2)(b) described as a Hispanic man, who was also a passenger in the unmarked RMP, and identified by the investigation as PO Gonzalez, frisked § 87(2)(b) at his shoulders, down his arms, along his torso and down his legs. PO Gonzalez then unzipped § 87(2)(b) s coat and frisked his hooded sweatshirt underneath. § 87(2)(b) also stated that he and § 87(2)(b) had been smoking prior to their interaction with the officers, and although he could not definitively recall if they were smoking tobacco or marijuana, § 87(2)(b) believes that they were smoking marijuana.

§ 87(2)(g)
PO Pagan did not observe § 87(2)(b) and PO Gonzalez, Det. Kasaji and Sgt. Marte did not observe any interaction between § 87(2)(b) and officers.

A seizure of person is defined as a significant interruption of an individual’s liberty of movement. An officer may stop a person only if he reasonably suspects that the person is committing, has committed, or is about to commit a crime. People v. DeBour, 40 N.Y.2d 210 (1976) (Encl. A - K). To frisk an individual, an officer must reasonably believe that the individual is armed. People v. DeBour, 40 N.Y.2d 210, 233 (1976) (Encl. A - K). Generally, in order to search a person, an officer must have probable cause to believe that the person has committed a crime, or possesses contraband. People v. DeBour, 40 40 N.Y.2d 210 (1976) (Encl. A - K).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
Therefore, it is recommended that **Allegations D, E and F be substantiated.**

§ 87(4-b) § 87(2)(g)
[REDACTED]

§ 87(4-b) § 87(2)(g)

[Redacted text block]

§ 87(4-b) § 87(2)(g)

[REDACTED]

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date